



Information About RIAC Referrals For Attorneys Assigned to Criminal Appeals With Foreign-Born Clients

The CNY Regional Immigration Assistance Center (RIAC) has received an automatic referral regarding a case to which you have been assigned, because your client has previously been listed as having been born overseas.

Please see the information below RIAC's role in assisting you, but don't hesitate to contact us by email (RIAC2@ocbaacp.org) or telephone (316-356-5794) if you have any questions.

I. BACKGROUND INFORMATION ABOUT OUR INVOLVEMENT IN YOUR CASE

- Who Is The RIAC? We are assigned to provide expert legal advice to all 18(b) counsel on the immigration consequences of criminal and family court cases (including their appeals). We are *your* legal experts - and do not create any direct attorney-client relationship with your client.

- Why Are You Contacting Me About This Case? The RIAC receives a referral from the assigned counsel panel whenever (1) an individual is listed as not having been born overseas (whether or not they are currently a U.S. citizen) and (2) a case is assigned to an attorney. Just because a referral has been generated does not mean that your client is vulnerable to immigration consequences: the RIAC will advise individually on each case.

- Can I Share My Client's Confidential Information With RIAC / Do I Need My Client's Consent? Yes you can share / no you do not need your client's express consent: Consultation with an attorney who has subject-matter expertise is (1) permitted (and in some cases required) under the Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.1(b), and (2) comports with the duty to avoid revealing client confidential information because disclosure is impliedly authorized under rule 1.6(a)(2).

- How Can The RIAC Help In This Case? RIAC can provide subject matter expertise regarding anything to do with federal immigration law. For example, in appellate cases, we can provide legal advice and assistance on matters such as whether IAC is apparent on the record (e.g. through a *Padilla* violation), identifying opportunities for vacatur and strategic support on remedies where immigration consequences may be in play.

- All Time Spent Engaging With the RIAC Is Billable There is no downside to consulting the RIAC!

II. WHAT DOES RIAC NEED FROM YOU?

This depends entirely on whether your client received substantive advice on immigration consequences during the case below:

A. IF YOUR CLIENT DID RECEIVE FORMAL ADVICE ON IMMIGRATION CONSEQUENCES BEFORE DISPOSITION

RIAC needs to review (1) a copy of any written advice your client received and (2) all details of the disposition (i.e. the exact statute of conviction with sub-section, along with the nature of any sentence imposed). A copy of (3) any plea colloquy is also extremely helpful.

Please note: If the immigration advice provided does not explicitly set out your client's immigration history and current immigration status, we will need that too. For ease of reference, the specific information we will need can be found in our intake form for trial-level criminal cases, [available here](#) (please note that not all questions will be relevant for an appellate case).

RIAC will then let you know what, if any, additional information, documents or transcripts are needed and advise you accordingly.

B. IF YOUR CLIENT DID NOT RECEIVE FORMAL ADVICE ON IMMIGRATION CONSEQUENCES BEFORE DISPOSITION

If your client did not receive advice on immigration consequences during the case below – or only received informal advice (e.g. “this plea shouldn’t cause you too many problems”) we will need all of the following information:

- A full list of the original charges with sub-sections – preferably a copy of the charging documents with supporting depositions;
- A completed RIAC intake form, which is [available here](#) (please note that some questions will be relevant for an appellate case);
- A copy of your client's fingerprint RAP sheet; and
- Details from your client about (1) what, if anything they were told about potential immigration consequences and (2) whether immigration consequences are important to your client.